

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MAY 13, 2026
8:30 a.m.

2. ROBERT SOUZA V. ARIANA MARTINEZ

24FL0473

This action was filed on May 09, 2024. To date, there is no proof of service of summons on the Respondent in the court's file. Code of Civil Procedure section 583.420 authorizes the court to dismiss an action for delay in prosecution where service is not made within two years after the action is commenced. (Code Civ. Proc., § 583.420, subd. (a)(1).)

On November 13, 2025, the court mailed the Petitioner notice of this two-year dismissal hearing.

Due to the lack of service, the court intends to dismiss the action without prejudice at the hearing.

TENTATIVE RULING #2: PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 583.420, THE COURT DISMISSES THE ACTION.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.